

G. Ramesh vs Smt. Asha on 11 October, 2017

Bench: B.S.Patil, B.V.Nagarathna

MFA 4121/2014

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF OCTOBER, 2017

PRESENT

THE HON'BLE MR.JUSTICE B.S.PATIL

&

THE HON'BLE MRS.JUSTICE B.V.NAGARATHNA

M.F.A.No.4121/2014

BETWEEN

G.RAMESH
S/O G. GOVINDARAJ
AGED ABOUT 42 YEARS,
R/AT NO.66/1,
C/O MARUTHI CHICKEN CENTER
DR. T.C.M. RAYAN ROAD,
COTTON PET
BANGALORE-560 053. ... APPELLANT

(By Sri B.K.MANJUNATH, ADV.)

AND

SMT. ASHA
D/O LATE NAGANNA
AGED ABOUT 33 YEARS,
R/AT IYAPPA BUILDING,
2ND CROSS, SHIVAPURA
PEENYA 2ND STAGE,
BANGALORE-560 058. ... RESPONDENT
(AMENDED V/C/O DT.11.10.2017)

(By Sri V.V.GUNJAL, ADV.)

THIS MFA FILED U/SEC 19(1) OF FAMILY COURT ACT,
AGAINST THE JUDGMENT AND DECREE DATED:18.3.2014

PASSED IN M.C NO.1421/2012 ON THE FILE OF THE I ADDITIONAL
PRINCIPAL JUDGE, FAMILY COURT, BANGALORE, DISMISSING
THE PETITION FILED U/SEC 13(1)(ia) OF HINDU MARRIAGE ACT.
MFA 4121/2014

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THIS APPEAL COMING ON FOR ORDERS THIS DAY,
B.S.PATIL, J., DELIVERED THE FOLLOWING:

JUDGMENT

1. This Miscellaneous First Appeal is filed under Section 19(1) of the Family Courts Act. The Appeal is pending since 2014. Appellant is the husband of the respondent. He is challenging the judgment and decree dated 18.03.2014 passed in M.C.No.1421/2012, thereby dismissing the petition filed by him under Section 13(1)(ia) of the Hindu Marriage Act, 1955.
2. Both parties have now filed a petition under Section 13B of the Hindu Marriage Act read with Order XXIII Rule 3 of CPC seeking dissolution of marriage solemnized between them on 13.12.2007, by mutual consent.
3. Both parties are present before the Court. We have heard the learned Counsel for both parties and we have made necessary inquiries with the appellant and the respondent with regard to the possibility of any re- conciliation between them. Both parties are emphatically contending that they are not in a position to live together as husband and wife and that they have mutually agreed for dissolution of the marriage.
4. Learned Counsel appearing for both parties Mr. B.K.Manjunath and Mr. V.V.Gunjal submit that despite best efforts made by them, they have not been able bring about re-conciliation between the husband and wife.
5. In the circumstances, we are satisfied that the petition filed by both the parties under Section 13B of the Hindu Marriage Act, 1955, for divorce by mutual consent deserves to be accepted.
6. On perusal of the petition filed, it is clear that appellant has agreed to pay a sum of Rs.10 lakhs as permanent alimony to the respondent. The said sum is being paid by way of demand draft bearing No.588300 dated 04.10.2017 drawn on Canara Bank, Devanahalli Brnach, which is handed over by the Counsel for the appellant in favour of the Counsel for the respondent.
7. In the light of the above, this appeal is disposed of by passing the following:

ORDER

- (i) The petition filed under Section 13B of the Hindu Marriage Act, 1955 is allowed;

(ii) Marriage solemnized between the appellant and respondent on 13.12.2007 is dissolved by mutual consent;

(iii) Registry is directed to draw the decree accordingly.

Sd/-

JUDGE Sd/ JUDGE KK